

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN REYES, II
HEARING DATE: 04/15/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See Line 14 below. The CMC is reset to July 17, 2026.

2. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
*CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See Line 16 below.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)
FILED BY:**

TENTATIVE RULING:

Defendant Miller filed this motion for attorney's fees and costs incurred in successfully opposing an appeal by plaintiff. On the original motion hearing date, the Court noted that there was no proof that the motion had been served on the opponent, and continued the motion to today with directions that the moving party must provide proper proof of service. Nothing has been filed since then, and there is still no indication that the motion was served, or that plaintiff is even aware of its existence. The motion is accordingly **denied** for failure to serve the motion and to comply with the Court's prior order.

4. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***HEARING ON MOTION IN RE: FILE RECORDS UNDER SEAL
FILED BY: WHEATON, R.N., JEFF**

TENTATIVE RULING:

The calendaring of events in this case is a confusing spider web of events. The bottom line, however, is that we need to ascertain whether plaintiff's counsel is or is not going to continue to represent plaintiff, and whether (and how) plaintiff is going to continue to litigate the case, before we can fairly ask her or any of the other parties to proceed to full consideration of any of the substantive matters now before the Court.

There are three summary judgment motions on today's calendar, two of which were only belatedly added onto this calendar. Plaintiff, however, has sought to continue those motions because she asserts she needs some still-pending discovery in order to respond to them. Her own motion to compel the discovery she says she needs for that purpose is calendared for June 17.

There is also a motion to file under seal. Two related motions to file under seal, however, have been noticed for April 29, coinciding with a CMC set for that date. Even absent other concerns, the summary judgments should await ruling on the motions to seal.

And perhaps most consequentially, plaintiff's counsel has filed a motion for leave to withdraw from the representation, also calendared for June 17.

We need to find out whether plaintiff is going to continue pursuing this case, and if so, whether with